

STATE OF NEW YORK

8140--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 1, 2025

Introduced by M. of A. P. CARROLL -- read once and referred to the Committee on Local Governments -- recommitted to the Committee on Local Governments in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the village of Nyack to alienate and discontinue the use of certain parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the village of Nyack
2 is hereby authorized, acting by and through its governing body, and upon
3 such terms and conditions as determined by such governing body, to
4 discontinue the use as parkland and alienate the lands described in
5 section three of this act for the purpose of the construction of a
6 restaurant.
7 § 2. The authorization contained in section one of this act shall only
8 be effective on the condition that the village of Nyack dedicate an
9 amount equal to or greater than fair market value of the parklands being
10 alienated pursuant to section one of this act towards the acquisition of
11 new parklands and/or capital improvements to existing park and recre-
12 ational facilities.
13 § 3. The parklands authorized by section one of this act to be discon-
14 tinued as parkland is described as follows:
15 All that certain piece, parcel, or tract of land situate in the Village
16 of Nyack, Town of Orangetown, County of Rockland, State of New York as
17 depicted on a map entitled "Leased Area Only Part of Tax Lot 66.39-1-5
18 Village of Nyack, Town of Orangetown, Rockland County, New York" as
19 prepared by Maser Consulting P.A., dated 10/20/03 and being more partic-
20 ularly described as follows:
21 Beginning in the southern road boundary of Burd Street at a point
22 located in the division line between lands of Village of Nyack (tax

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 parcel 66.39-1-5) to the west and Clermont Condominiums (tax parcel
2 66.39-1-4) to the north and east;
3 Thence southerly along said division line South 19°32'05" West a
4 distance of 32.47 feet to a point; thence continuing through the lands
5 of Village of Nyack (tax parcel 66.39-1-5) the following four courses
6 and distances:
7 1. North 67°49'55" West a distance of 57.93 feet to a point;
8 2. South 22°10'05" West a distance of 39.19 feet to a point;
9 3. North 67°49'55" West a distance of 72.70 feet to a point;
10 4. North 22°10'05" East a distance of 71.63 feet to a point located in
11 the aforementioned southern road boundary of Burd Street;
12 Thence along said road boundary South 67°49'55" East a distance of
13 129.14 feet to the point and place of beginning.
14 Containing 7,062 Square Feet or .16 acres of land, more or less.
15 § 4. In the event that the village of Nyack received any funding
16 support or assistance from the federal government for the purchase,
17 maintenance, or improvement of the parklands set forth in section three
18 of this act, the discontinuance and alienation of such parklands author-
19 ized by the provisions of this act shall not occur until the village of
20 Nyack has complied with any federal requirements pertaining to the
21 alienation or conversion of parklands, including satisfying the secre-
22 tary of the interior that the alienation or conversion complies with all
23 conditions which the secretary of the interior deems necessary to assure
24 the substitution of other lands shall be equivalent in fair market value
25 and usefulness to the lands being alienated or converted.
26 § 5. This act shall take effect immediately.